

CHAPTER VII

THIS IS A CASE WHERE THE COURT SHOULD EXERCISE ITS DISCRETION SO AS NOT TO GIVE AN ADVISORY OPINION

A. The Court's discretion under Article 65(1)

- 7.1 The Court's power to give an advisory opinion is established by Article 65(1) of the ICJ Statute, which provides:

The Court may give an advisory opinion on any legal question at the request of whatever body may be authorized by or in accordance with the Charter of the United Nations to make such a request.

- 7.2 Two immediate points stand out with respect to the discretion – the Court “may give” (“*peut donner*”) – enjoyed by the Court under Article 65(1).
- 7.3 First, the subject-matter of the discretion is the giving of an advisory opinion on “any legal question”. This is a different and narrower formulation to that used at Article 14 of the Covenant of the League of Nations, pursuant to which the Permanent Court was empowered to “give an advisory opinion upon *any dispute or question* referred to it ...” (“*sur tout différend ou tout point*”) (emphasis added). As certain commentators have noted, the idea within the framework of the League of Nations was to create an additional and flexible means of peaceful settlement of disputes, less binding than judgments in contentious cases between States, but also relating in the first place to inter-State controversies²⁷¹. The advisory jurisdiction of the current Court is less broad, and that follows from the materially different language used in Article 65(1) of the ICJ

²⁷¹ Simma et al, *The Charter of the United Nations: A Commentary* (3rd ed), Vol. II, 1978 (Oellers-Frahm), referring to Daillier in Cot/Pellet (eds.), pp. 1291, 1292; Schlochauer, H.-J., ‘Permanent Court of International Justice’, *EPIL* III, pp. 988–1004. Note also that the invocation of Article 14 was subject to Article 5, pursuant to which: “Except where otherwise expressly provided in this Covenant or by the terms of the present Treaty, decisions at any meeting of the Assembly or of the Council shall require the agreement of all the Members of the League represented at the meeting.”

Statute and Article 96(1) of the UN Charter²⁷², as well as being reflected in the different practice of the two Courts²⁷³.

7.4 Secondly, the existence of the discretion under Article 65(1) is of considerable importance and has been regularly emphasised by the Court²⁷⁴. This is not, of course, to suggest that the discretion has been regularly exercised by the Court so as to decline to give an opinion: the Court has thus far not had occasion to exercise its discretion so as to decline to answer – as opposed to reformulate – a given legal question put to it under Article 65²⁷⁵. The Court has, however, identified situations where exercise of the discretion to refuse may be appropriate.

7.5 Of particular relevance to the current case is the well-known passage from the *Western Sahara* case concerning judicial propriety – in the context of the basic principle that a State is not obliged to allow its disputes to be submitted to judicial settlement without its consent. Referring back to the *Interpretation of Peace Treaties* case, the Court explained:

Thus the Court [in *Interpretation of Peace Treaties*] recognized that lack of consent might constitute a ground for declining to give the opinion requested if, in the circumstances of a given case, considerations of judicial propriety should oblige the Court to refuse an opinion. In short, the consent of an interested State continues to be relevant, not for the Court's competence, but for the appreciation of the propriety of giving an opinion.

In certain circumstances, therefore, the lack of consent of an interested State may render the giving of an advisory opinion incompatible with the Court's judicial character. An instance of this would be when the circumstances disclose that to give a reply would have the effect of circumventing the principle that a State is not obliged to allow its disputes to be submitted to judicial settlement without its consent.²⁷⁶

²⁷² Cf. Article 96(a) of the UN Charter: "The General Assembly or the Security Council may request the International Court of Justice to give an advisory opinion on any legal question."

²⁷³ See e.g. Simma et al, *The Charter of the United Nations: A Commentary* (3rd ed), Vol. II, 1979 (Oellers-Frahm). See also Zimmermann et al, *The Statute of the International Court of Justice: A Commentary* (2nd ed), 1673 (Cot).

²⁷⁴ See e.g. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory, Advisory Opinion*, I.C.J. Reports 2004, p. 136, at para. 44.

²⁷⁵ Cf. the decision reached by the PCIJ in *Status of Eastern Carelia, Advisory Opinion*, 1923, P.C.I.J., Series B, No. 5.

²⁷⁶ *Western Sahara, Advisory Opinion*, I.C.J. Reports 1975, p. 12, at p. 25, paras. 32-33, referring to *Interpretation of Peace Treaties, Advisory Opinion, First Phase*, I.C.J. Reports 1950, p. 65, at p. 71.

7.6 There are five important points to make on this passage.

7.7 First, the concern of the Court in *Western Sahara* – that the fundamental principle of consent be upheld – is at least as valid today as it was in 1975. This Court and other international tribunals have in recent years become very familiar with attempts by claimant States to re-characterise their claims – including sovereignty claims – so as bring them within the jurisdictional provisions of treaties that are not designed to cover them. Such attempts have not been successful, as is consistent with the recognition of the continuing and central importance of consent to the exercise of jurisdiction at the international plane. The recent advisory opinions of the Court show that the principle restated in the *Western Sahara* case remains very important. The passage was quoted and applied, for example, in the *Wall* case, the Court’s conclusion merely being that the principle was not engaged on the facts, i.e. it did “not consider that to give an opinion would have the effect of circumventing the principle of consent to judicial settlement”²⁷⁷.

7.8 Secondly, while the Court’s jurisdiction under Article 65(1) is different in nature and effect to its contentious jurisdiction, this does not provide a sufficient answer to the need to uphold the principle of consent. That is plain from the Court’s reasoning in cases such as *Interpretation of Peace Treaties* and *Western Sahara*. Of course, an advisory opinion is not binding on the parties to a given dispute, unlike a judgment of the Court, and it is given to the requesting organ as opposed to States. However, the Court is still being asked to set out its view in the form of statements of law and such statements – although non-binding – have also been directed at third States²⁷⁸.

7.9 Thirdly, as follows from the above, it is not the purpose of Article 65(1) to establish a form of residual, non-binding dispute settlement mechanism for claimants who are unable to establish contentious jurisdiction in respect of their claims, but are able to find support for a request from a majority in the General Assembly. It is not just that

²⁷⁷ See e.g. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory, Advisory Opinion*, I.C.J. Reports 2004, p. 136, at p. 159, para. 50.

²⁷⁸ See e.g. the Court’s declaration in the *dispositif* in the *Wall* case that “[a]ll States are under an obligation not to recognize the illegal situation resulting from the construction of the wall ...” (*ibid.*, p. 202). Such a declaration is not formally binding, but that would also be true in a contentious case. See Article 59 of the Statute: “The decision of the Court has no binding force except between the parties and in respect of that particular case.”

the plain words of Article 65(1) (cf. Article 14 of the League Covenant) and the interpretation of the Court do not support any such approach. Also, were it otherwise, the Court could readily become the home for multiple longstanding and/or notorious disputes as to which there is no agreed forum.

- 7.10 Fourthly, the existence of some form of dispute in the background to a request made under Article 65(1) is nonetheless common²⁷⁹, and it is well-established that the mere fact of a background dispute will not be enough for the Court to decide not to exercise its jurisdiction. What is necessary is that the existence of a given dispute engages considerations of judicial propriety that require the Court to refuse an opinion, and the Court has said that compelling reasons would be needed to lead it to refuse its opinion in response to a request falling within its jurisdiction²⁸⁰.
- 7.11 Finally, factors other than, or overlapping with, a lack of consent may give rise to considerations of judicial propriety. So far as concerns the current case, the Court could not properly be asked to depart from findings in previous contentious proceedings that are binding on two State parties to a dispute that is put before it in the context of its advisory jurisdiction. Further, there may be disputed issues of fact that the Court is unable properly to determine outside the confines of contentious proceedings²⁸¹.

B. Judicial propriety in the current case

- 7.12 Against that backdrop, it is useful to identify the salient features of the dispute between the United Kingdom and Mauritius that underlies the current Request, before turning to the past opinions of the Court to assess whether this dispute is such as to engage considerations of judicial propriety in a compelling way.

²⁷⁹ See e.g. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, Advisory Opinion, I.C.J. Reports 2004, p. 136, at p. 158, para. 48, referring to *Legal Consequences of the Continued Presence of South Africa in Namibia (South West Africa) notwithstanding Security Council Resolution 276 (1970)*, Advisory Opinion, I.C.J. Reports 1971, p.16, at p. 24, para. 34.

²⁸⁰ See e.g. *Accordance with International Law of the Unilateral Declaration of Independence in Respect of Kosovo*, Advisory Opinion, I.C.J. Reports 2010, p. 403, at p. 416, para. 31. Although cf. Dissenting Opinion of Judge Bennouna, para. 5, and Separate Opinion of Judge Keith, para. 5.

²⁸¹ See e.g. Judge Greenwood, 'Judicial Integrity and the Advisory Jurisdiction of the International Court of Justice', in *Enhancing the Rule of Law Through the International Court of Justice*, ed. Gaja and Stoutenburg (2014) 63 at pp. 68-69.